

# SAMPLE SERVICE AGREEMENT

*For Educational and AI/RAG Testing Purposes Only*

**Effective Date:** 1 July 2026

**Parties:** ABC Technology Services Pvt. Ltd. (the “Service Provider”) and XYZ Retail Solutions Pvt. Ltd. (the “Client”).

## 1. Purpose and Scope of Services

The Service Provider agrees to provide software development, technical support, maintenance, and related consulting services to the Client. The detailed tasks, deliverables, and timelines may be described in written statements of work agreed by both parties.

## 2. Term

This Agreement begins on the Effective Date and continues for twelve months unless terminated earlier in accordance with Section 8. The parties may renew the Agreement by written mutual consent.

## 3. Fees and Payment

The Client shall pay the Service Provider INR 50,000 per month. Invoices are payable within thirty days from the invoice date. Any disputed invoice must be reported in writing within ten business days of receipt.

## 4. Confidentiality

Each party shall protect confidential information received from the other party and shall use it only for purposes related to this Agreement. Confidential information shall not be disclosed to third parties without prior written consent, except where disclosure is required by law.

## 5. Data Protection

The Service Provider shall use reasonable technical and organizational measures to protect Client data against unauthorized access, loss, alteration, or disclosure. Personal data shall be processed only for the agreed services and in accordance with applicable law.

## 6. Intellectual Property

Pre-existing intellectual property remains the property of the party that owned it before this Agreement. Upon full payment, custom deliverables specifically created for the Client under an agreed statement of work shall belong to the Client, unless otherwise stated in writing.

## 7. Limitation of Liability

Neither party shall be liable for indirect, incidental, special, or consequential losses arising from this Agreement. Except for fraud, wilful misconduct, confidentiality breaches, or obligations that cannot legally be limited, each party's total liability shall not exceed the fees paid or payable during the six months preceding the event giving rise to the claim.

## 8. Termination

Either party may terminate this Agreement without cause by giving thirty days' written notice to the other party. A party may terminate immediately if the other party commits a material breach and fails to remedy that breach within fifteen days after receiving written notice. Upon termination, the Client shall pay all undisputed fees for services completed up to the termination date.

## 9. Dispute Resolution

The parties shall first attempt to resolve disputes through good-faith negotiation. If a dispute remains unresolved for thirty days, the parties may refer the matter to arbitration in Chennai, Tamil Nadu, in accordance with applicable Indian law.

## 10. Governing Law

This Agreement shall be governed by the laws of India. Subject to the dispute resolution clause, courts with appropriate jurisdiction in Chennai, Tamil Nadu shall have jurisdiction.

## 11. Entire Agreement

This document and any signed statements of work constitute the entire agreement between the parties regarding the services and replace prior discussions or understandings on the same subject. Any amendment must be made in writing and signed by authorized representatives of both parties.

**Disclaimer:** This is a fictional sample agreement created solely for software development, education, and RAG testing. It is not legal advice and should not be used as a real contract.